



Appeal Decision

Site visit made on 25 August 2026

by **C McDonagh BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 9TH September 2026

Appeal Ref: 6010714

66 Belbroughton Road, Blakedown, Kidderminster DY10 3JH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs M Payne against the decision of Wyre Forest District Council.
 - The application Ref is 26/0005/HOU.
 - The development proposed is 'two storey side extension, replacement single storey rear extensions and front garage and entrance canopy extension.'
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published by the Government. This is a material consideration in the decision-making process from the day of publication. The changes made to the Framework are not material to the main issues of this appeal and as such there was no need to seek comments on the revised version. This would not prejudice either of the main parties.

Main Issues

3. The main issues are as follows:
 - Whether the proposal would constitute inappropriate development in the Green Belt.
 - The effect of the proposal on the openness of the Green Belt.
 - The effect of the proposal on the living conditions of adjacent residents.
 - Whether any harm to the Green Belt by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposed developments.

Reasons

Whether Inappropriate in Green Belt

4. The appeal site is comprised of a two-storey, semi-detached dwelling with an attached single storey garage to one side and a conservatory to the rear. There are also gardens to the front and rear. The proposal seeks to remove the garage and conservatory and replace with a two-storey side extension, single storey rear extension and a front entrance canopy.

5. The appeal site is located within the Green Belt. I have therefore had regard to policy GB7 of the Framework which list exceptions to the presumption against development in the Green Belt. Of relevance to the proposal is the exception given in part b, which relates to the reuse, extension, alteration or replacement of an existing building, provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building.
6. Policy DM.22 of the Wyre Forest District Council Local Plan 2016 – 2036 (LP) (adopted April 2022) largely repeats the aim of the Framework at section (iii). I have also had regard to the Design, Amenity and Shopfronts Supplementary Planning Document (the SPD) (adopted July 2024) which advises that dwellings within the Green Belt can extend 75% of the floor area and volume of the original dwelling including basements as of 1948. Any previous extensions to the original dwellinghouse must be added to the proposed extension floor area and volume allowance when calculating the 75%. In light of this any extension proposed must take into account any outbuildings within 5m of the original dwelling as part of the extension and this will count towards the 75% allowance.
7. Guidance it may be, but the SPD is relatively recent, and I see no reason not to give it significant weight as a material consideration given it aligns with the aims of the Framework in protecting Green Belt land. There are conflicting calculations between the main parties as to what the 75% increase would equate to in this context. Either way, the parties agree that with a total volume of 661m³ the proposals would exceed both figures by some way, even if I was to take the appellant's 75% figure into account.
8. To my mind this would significantly exceed the recommended 75% increase over the original dwelling and constitute inappropriate development in the Green Belt contrary to policy GB7 of the Framework and policy DM.22 of the LP.

Openness of the Green Belt

9. The introduction to section 13 of the Framework is clear that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. Openness and permanence are essential characteristics of the Green Belt. As per the Planning Practice Guidance¹ (PPG), openness is capable of having both spatial and visual aspects – in other words, the visual impact of a proposal may be relevant, as could its size.
10. The rear extension would replace an existing conservatory and alongside the ground floor section of the proposed side extension both would reach the same distance from the rear wall as the existing garage and conservatory. Given the location to the rear of the property and screening which exists from other buildings and hedgerows, the visual and spatial impact upon openness from these elements would likely be the same as the current situation.
11. However, the ground floor of the side extension would extend to the front elevation of the host building bringing it much further forward than the existing situation. Alongside the first floor element of the side extension, this would be clearly visible from Belbroughton Road to the front. Furthermore, despite the slight set down from

¹ Paragraph: 013 Reference ID: 64-013-20250225

the host ridge, the height and width of the extension would add significant bulk and mass to the side of the property when viewed from the public domain to the front. Spatially and visually, this would reduce openness.

12. Taken together, there would be a limited overall loss of openness to the Green Belt. However, invariably this would result in harm to the Green Belt given its purposes, contrary to section 13 of the Framework.

Living Conditions

13. The SPD advises that all developments should accord with the 45 degree code in order to ensure the development does not result in a serious adverse effect on the amenity of neighbouring residents or occupiers in accordance with Policy DM.25 of the LP. This is taken from new extensions to avoid a loss of outlook or daylight to neighbouring properties to a habitable room. Habitable rooms are clarified as living rooms, bedrooms and kitchens.
14. I understand that the existing conservatory already breaches this 45 degree rule to No.64. However, it is built from light weight permeable material whereas the proposed rear extension would be more solid given its brick construction. The replacement of the conservatory in this manner would introduce a more imposing structure than the existing situation, causing a slight worsening of the living conditions of the occupiers of that property through a loss of outlook and natural light.
15. As per the SPD, if the proposed extension crosses the 45 degree code it will result in a conflict with Policy DM.25 of the LP. Any departures from the local plan will only be accepted where it can be demonstrated that there would be no serious adverse effect on the amenity of neighbouring occupiers or there is a realistic fallback position.
16. To my mind, the adverse impact would not be serious. The extension over the existing would be more solid but of the same scale and as such, I do not consider the proposal would be contrary to the SPD in this regard. As such, it would not harm the living conditions of occupiers of No.64 with respect to outlook and natural light. This would accord with policy DM.25 of the LP which seeks to ensure that extensions and alterations should not have a serious adverse effect on the amenity of neighbouring residents or occupiers. The proposal would also accord with policy L2(d)(ii) of the Framework which seeks to maintain acceptable living standards for residents and neighbours in terms of access to daylight, sunlight, privacy and external amenity space.

Other Considerations

17. I have found that the proposal would constitute inappropriate development in the Green Belt, while it would also not preserve its openness. Policy GB6 of the Framework is clear that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations. In making this assessment, substantial weight should be given to the harm to the Green Belt which would be caused, including harm to its openness.

18. I am informed that since the application subject to this appeal was refused, two applications have been approved by the Council at the appeal site. This includes prior approval² for a larger home extension which allows for a single storey rear extension to extend 4.17m maximum from the original rear wall of the dwelling, which matches the depth of the existing conservatory. Alongside this, a certificate of lawfulness³ for a proposed single storey porch, single storey side extension and a hip to gable loft conversion. I don't have plans or other substantive details of any of these before me.
19. The Courts⁴ have held that the prospect of the fallback position does not have to be probable or even have a high chance of occurring; it has to be only more than a merely theoretical prospect. Although the possibility of the fallback position happening may be very slight, this is sufficient to make the position a material consideration. I see reason to dispute that the fallback is a material consideration, although the amount of weight it should be given as a fallback depends on the particular circumstances of the case and is still at the discretion of the decision maker.
20. Implementing both the prior approval and certificate of lawfulness schemes would add significant volume to the dwelling as would the proposal. That being said, it would still be less than the proposal by a significant margin and would also fall below the 75% maximum increase that the SPD allows which the appellant has calculated. In any event, there would seemingly be no first floor which would alleviate much of the harm in Green Belt terms. There may also be scenarios where the rear extension could be reduced and the two-storey side element could be implemented within the 75% allowance, although that proposal is not before me.
21. The hip-to-gable would allow more mass to the side of the roof, although it would leave the first floor remaining free of development to the side. As such I disagree that the impact of this would be worse than the proposal. It is also suggested that an outbuilding could be constructed under Schedule 2, Part 1, Class E of the Town and Country Planning (General Permitted Development) (England) Order 2015 (the GPDO).
22. The appellant is free to implement those extensions and permitted development schemes if they please, but they do not convince me the proposal is acceptable. They would not provide the same space and continuity as the proposal and as such I give them only limited weight as a material consideration.

Other Matters

23. The appellant may feel that the proposal would create an attractive frontage to the property while the extensions would use matching materials. Be that as it may, the reasons for refusal do not include harm to the character and appearance of the area and I see no reason to disagree.
24. I understand that other properties in the area have been extended. I have photos of some of these, although I do not have details of approved planning applications before me. It is therefore unclear whether they are similar to the proposal. In any event, I have assessed the appeal proposal on its own merits.

² 26/0266PNH

³ 26/0265/CLP

⁴ Schneck v SSHCLG & West Berkshire DC [2022] EWHC 3335 (Admin)

Green Belt Balance and Conclusion

25. Taking the above under consideration, the benefits of the proposal would not clearly outweigh the harm to the Green Belt, which is given substantial weight. Therefore, they do not represent the very special circumstances required.
26. The proposal therefore conflicts with the development plan as a whole, as well as the relevant provisions of the Framework and supplementary guidance. Accordingly, for the reasons given above, I conclude that the appeal is dismissed.

C McDonagh

INSPECTOR